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FEATURED

## Flock camera data has insufficient systemic oversight in San Mateo County, grand jury finds

Grand jury did not find current evidence of ALPR out-of-state data-sharing

By Holly Rusch, Daily Journal staff

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A civil grand jury report reviewing San Mateo County police agencies' use of automated license plate readers didn't find any illegal, out-of-state data-sharing as of December 2025, but did see sharing with private universities and noted that unauthorized data access and insufficient oversight mechanisms for the cameras remains a concern.

"Although the materials reviewed did not identify current sharing by SMC operators with out-of-state entities, most operators did not document criteria, process, or controls governing in-state sharing in a manner sufficient to demonstrate compliance with law," the San Mateo County Civil Grand Jury report, issued Aug. 3, read.

Nearly all police agencies in the county utilize Flock Safety, a technology that can be used for authorized law enforcement to respond to emergencies, apprehend people suspected of crimes and identify stolen vehicles and missing people but has also generated serious privacy issues.

Locally, Palo Alto Online reported that the Menlo Park Police Department previously broke state law by accidentally sharing data collected by their ALPRs with out-of-state agencies, an issue that has become prevalent across California and in nearby cities like Mountain View.

Mountain View announced its decision to turn its ALPRs off after findings that hundreds of law enforcement agencies, including several federal entities, had accessed its license plate data without authorization, the Mountain View Voice reported.

Residents of other San Mateo County cities, like Redwood City and East Palo Alto, have also urged their city councils to revisit contracts with Flock following nationwide scrutiny over the company's data-sharing practices.

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Despite state ALPR-sharing law allowing only for data dissemination between public agencies, the grand jury found that law enforcement agencies, including in Atherton, Belmont, Brisbane, Burlingame, Colma, East Palo Alto, Hillsborough, Menlo Park, Pacifica, Redwood City and San Bruno, had shared data with private university security.

The San Mateo County Sheriff's Office, which provides police services to unincorporated areas of the county as well as specific cities, had two reported instances of sharing data with private universities, and Daly City and Foster City did not report the data.

While the San Mateo County Civil Grand Jury reported that police agencies had bolstered their protections against out-of-state data sharing, largely because of systemwide improvements made by Flock, the auditing processes in place remain insufficient in detailing whether state regulations are actually being followed.

In particular, the process of "side-sharing," where ALPR operators make a search upon request of an outside agency and don't record the results or reason for the search in the system, is extremely difficult to detect, the report stated.

"As a result, compliance with California law in this area depends largely on the policies, training, and oversight practices of individual agencies," the report said.

Officer Andrew Peek, San Mateo Police Department public information officer, said that the agency was implementing a formal monthly auditing process to promote transparency of the technology, which has been helpful not only in solving crimes but also missing persons cases and mental health situations. The department does not engage in side-sharing and requires all agencies requesting its data to adhere to its policies, he said.

"The big thing moving forward, these audits provide great documented oversight, reinforcing accountability," Peek said.

The Sheriff's Office is also committed to ensuring ALPR technology is being used for "its intended purpose," Communications Director Gretchen Spiker said in a statement.

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"The ALPR system is configured to prevent access by out-of-state and federal agencies. Compliance is verified through periodic audits conducted by Sheriff's Office personnel," Spiker's statement read.

Other police agencies whose cities were denoted as having weak audit systems or simply not reporting audit data at all, like Burlingame, Menlo Park and Hillsborough, did not respond to request for comment.

Whether agencies share data within the entire state or only within the county is also up to those individual jurisdictions, according to the grand jury. San Bruno, for example, shares data with 335 other agencies, whereas Woodside shares with only three.

The possibility of data being shared incorrectly corresponds to how many other agencies have access to it, according to the report.

“As the size of a network increases and more law enforcement agencies are granted access, the risk of misuse correspondingly increases,” the report said.

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